

In addition, since entry of those orders, Plaintiff has filed a notice of appeal relating to the judgment and the Court's earlier orders.

"[T]he perfecting of an appeal stays proceedings in the trial court upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order...." (Cal. Code Civ. Proc. § 916 (a); *Varian Med. Systems, Inc. v. Delfino* (2005) 35 Cal4th 180, 189.) An appeal is "perfected" when a notice of appeal is timely filed. (*Kroger Co. v. Workers' Comp. Appeals Bd.* (2012) 210 Cal.App.4th 952, 959.) A stay on appeal from an appealable order deprives the trial court of jurisdiction to adjudicate a motion for reconsideration of that order, because the motion for reconsideration is not collateral to the appealed order. (*Young v. Tri-City Healthcare Dist.* (2012) 210 Cal.App.4th 35, 51-53.)

Plaintiff's filing of the notice of appeal further emphasizes that the Court does not have jurisdiction to reconsider its earlier ruling.

Sanctions

Repeated attempts to relitigate claims that have been finally determined can lead the Court to deem the Plaintiff a vexatious litigant. (Cal. Code Civ. Proc. § 391 (b)(2).) In addition, the filing of frivolous and meritless motions can lead to Plaintiff being sanctioned. (See e.g. Cal. Code Civ. Proc. §§ 128.5, 128.7.) The court cautions Plaintiff not to relitigate claims that have been finally determined, and not to file frivolous and meritless motions. Plaintiff has filed the same motion four times. This order marks the fourth time the court has denied a motion by the Plaintiff asking the trial court to rescind, reconsider, reverse, vacate or in any way revisit its March 5, 2025, order of Judgment in Favor of Defendants and against Plaintiff as to all causes of action.

Conclusion

Plaintiff's motion is **denied**.

2. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION IN RE: TO STRIKE 2ND AMENDED CROSS-COMPLAINT**
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

The Court on its own motion continues the hearing to Feb 6, 2025 at 9:00 am in Dept. 32.

3. 9:00 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
HEARING ON DEMURRER TO: TO 2ND AMENDED CROSS-COMPLAINT
FILED BY: SUNPOINT PUBLIC ADJUSTERS, INC.
TENTATIVE RULING:

The Court on its own motion continues the hearing to Feb 6, 2025 at 9:00 am in Dept. 32